

DISTRICT COURT, JEFFERSON COUNTY, COLORADO	
100 Jefferson County Parkway Golden, CO 80401	DATE FILED: October 6, 2017 11:41 AM FILING ID: 859566F9FC140 CASE NUMBER: 2017CV31538
Plaintiffs: DARYLL PROPP; CAROL A. PROPP	COURT USE ONLY
Defendant: AMERICAN FAMILY MUTUAL INSURANCE COMPANY	
Murray Wilkening, P.C. Murray Wilkening 7691 Shaffer Parkway, Suite B Littleton, CO 80127 Attorneys for Plaintiffs	Case Number:
Phone: (303)763-8988 Atty. Reg. #:15302 Fax: (303)763-9065 Email: murray@mwilkening.com	Division:
COMPLAINT AND JURY DEMAND	

Plaintiffs, as and for their Complaint against Defendant, state and allege as follows:

GENERAL ALLEGATIONS

1. Plaintiffs own a residence located in Jefferson County, Colorado, located at 2278 Holly Court, Golden, Colorado.
2. Defendant American Family Mutual Insurance Company, upon information and belief, is a Wisconsin corporation authorized to do business in the State of Colorado.
3. Venue is proper in the District Court, County of Jefferson, pursuant to C.R.C.P. Rule 98, as this case concerns a contract for insurance to be performed in and related to real property located in Jefferson County, Colorado.
4. Defendant issued a "Colorado Gold Star Homeowners Policy – Special Deluxe Form" insurance policy naming Plaintiffs as the insured (the "policy").
5. The policy provides insurance coverage for, among other things, damage to the residence and real and personal property owned by Plaintiffs.
6. On or about May 8, 2017, Plaintiffs' residence and property was damaged by hail.

7. Plaintiffs have submitted claims to Defendant pursuant to the policy for coverage for damages to their residence and property caused by the hail.

8. Defendant has refused to pay for all damage caused by the hail to Plaintiffs' residence.

FIRST CLAIM FOR RELIEF
(Breach of Contract)

9. The allegations of paragraphs 1 through 8 above are adopted and incorporated as if fully set forth herein.

10. Defendant has breached the insurance policy by failing to pay for all damage caused by the hail.

11. As a result of the breach of the insurance policy, Plaintiffs have suffered damages.

12. All conditions precedent required to bring this claim have been satisfied.

WHEREFORE, Plaintiffs demand judgment against Defendant for all damages caused by the hail to their residence and property, as a covered cause of loss pursuant to the insurance policy, plus pre-judgment and post-judgment interest, attorney fees and costs as allowed by the policy or the law, and for such other and further relief as the Court deems proper under the circumstances.

SECOND CLAIM FOR RELIEF
(Declaratory and Injunctive Relief)

13. The allegations set forth in paragraphs 1-12 above are hereby adopted and incorporated as though fully set forth herein.

14. Plaintiffs request that the Court enter orders determining the relative rights and obligations of the parties pursuant to C.R.S. §13-51-101 et. seq. and C.R.C.P. 57, including but not limited to coverage of the policy with respect to the hail damage to Plaintiffs' residence and property, and the amounts payable pursuant to the insurance policy for such damage.

WHEREFORE, Plaintiffs demand judgment against Defendant for full and complete declaratory and injunctive relief regarding the rights and obligations of the parties with respect to the subject matter of this case, including an award of money to Plaintiff as is determined to be appropriate under the circumstances, for costs, attorneys fees and pre-judgment and post-judgment interest as allowed by law or the policy, and such other and further relief as the Court deems proper under the circumstances.

THIRD CLAIM FOR RELIEF

(Bad Faith Breach of Contract; Breach of Good Faith and Fair Dealing)

15. The allegations of paragraphs 1 through 14 above are adopted and incorporated as if fully set forth herein.

16. Defendant has in bad faith and unfairly breached the insurance policy by failing to pay for any damage caused by the hail.

17. Defendant has unreasonably denied Plaintiffs the benefits of their policy knowing that its conduct is unreasonable, or in reckless disregard of its lack of reasonableness, by among other things, failing to communicate with Plaintiffs, failing to properly document damages, denying the existence of damages, and failure to fairly and promptly resolve damage claims.

18. As a result of the bad faith breach of the insurance policy and breach of the duty of good faith and fair dealing, Plaintiffs have suffered monetary damages and mental and emotional anguish and distress damages.

19. All conditions precedent required to bring this claim have been satisfied.

WHEREFORE, Plaintiffs demand judgment against Defendant for all damages caused by the hail to their residence and property, as a covered cause of loss pursuant to the insurance policy, plus all damages caused by Defendant's bad faith breach of contract and breach of the duty of good faith and fair dealing, for damages of two times the covered benefit and attorney's fees and costs pursuant to C.R.S. §10-3-1116, for pre-judgment and post-judgment interest, attorney fees and costs as allowed by the policy or the law, and for such other and further relief as the Court deems proper under the circumstances.

PLAINTIFFS DEMAND A TRIAL BY JURY.

Dated this 2nd day of October, 2017.

MURRAY WILKENING, P.C.

*Original signature on file
at office of counsel*

By _____
S/Murray Wilkening - #15302

ATTORNEYS FOR PLAINTIFFS

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